

HEADNOTE

“The principle of the right to be heard according to Art. 76(2) UPCA obliges the court to take note of and give due consideration to the submissions of the parties to the proceedings. Among other things, this principle requires the court to deal with the essential substance of a party’s submissions and, insofar as they relate to a central issue in the proceedings in question, to address them in its reasoning.

An infringement of this duty must be presumed if the grounds for the court’s decision allow only the conclusion that the court has completely disregarded the party’s submissions, or if the grounds are based on an interpretation that captures, at most, the literal wording but not the meaning of the party’s submissions.

The right to be heard does not require the court to expressly and exhaustively address each and every argument in detail in its decision. At least the parties’ core arguments must be reflected in it.”

COURT

Court of Appeal Luxembourg

PROCEEDINGS

Counterclaim for revocation

PATENT

EP 2 352 431

Method and system for controlling x-ray
focal spot characteristics for
tomosynthesis and mammography
imaging

KEYWORDS

suspensive effect

manifest error

infringement of fundamental procedural rig...

right to be heard

reasoned decision

Article 76

Basis for decisions and right to be heard

SUMMARY

The Court of Appeal in Luxembourg considered a counterclaim for revocation in these proceedings. The patents at issue relate to a method and system for controlling x-ray focal spot characteristics for tomosynthesis and mammography imaging. According to the headnotes of the decision, the right to be heard under Article 76(2) UPCA requires courts to carefully consider and address the essential substance of parties' submissions, particularly those touching on central issues in the case. The court breaches this duty when it completely ignores a party's submissions or bases its reasoning on an interpretation that captures only the literal words but misses their actual meaning. The right to be heard does not demand that judges discuss every single argument in exhaustive detail, but it does require that the core arguments advanced by the parties find reflection in the court's reasoning.